

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cassandra Fenkel	Team: Squad #10	CCRB Case #: 201509866	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Friday, 05/01/2015 12:00 AM, Wednesday, 05/06/2015 4:45 PM	Location of Incident: Canal Street and Broadway	18 Mo. SOL 11/6/2016	Precinct: 01
Date/Time CV Reported Thu, 11/19/2015 2:19 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Thu, 11/19/2015 2:19 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Brian Flynn	02084	938492	001 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Giocardo Bernabe	25607	948180	001 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Brian Flynn	Discourtesy: Sgt. Brian Flynn spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . SGT Brian Flynn	Off. Language: Sgt. Brian Flynn made a remark to § 87(2)(b) based upon race.	B . Unsubstantiated
C . SGT Brian Flynn	Off. Language: Sgt. Brian Flynn made a remark to § 87(2)(b) based upon ethnicity.	C . Unsubstantiated

Case Summary

On May 6 2015, at approximately 4:45 p.m. § 87(2)(b) was arrested in the area of Broadway and Canal Street in Manhattan for § 87(2)(b) (Board Review 1). During his arrest, § 87(2)(b) alleged that Sgt. Brian Flynn told him to “shut up” multiple times, and referred to § 87(2)(b) as a “monkey” when § 87(2)(b) inquired as to why he was arrested (Allegation A, Allegation B). Sgt. Flynn allegedly told § 87(2)(b) that he “would send all of you guys back” in reference to § 87(2)(b) and his other colleagues who work as street vendors (Allegation C). § 87(2)(b) was released from the 1st precinct stationhouse with a desk appearance ticket. There are no civilian witnesses or video footage of this incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) initially opted to mediate his complaint, which was sent to the mediation unit on November 23, 2015. On December 23, 2015, the case was returned from the mediation unit because § 87(2)(b) changed his mind and did not wish to mediate his complaint when contacted by the mediation unit.
- § 87(2)(b) has not filed a notice of claim regarding the incident (Board Review 2).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint (Board Review 4).
- Sgt. Flynn has been a member of service for 10 years. Sgt. Flynn has five prior CCRB complaints filed against him involving 9 allegations, none of which have been substantiated. On November 19, 2015, approximately 19 § 87(2)(b) (including § 87(2)(b) arrived together at the CCRB as walk-ins to file complaints regarding their interactions with Sgt. Flynn. In CCRB case 201509861, § 87(2)(b) raised discourtesy and threat of force allegations against Sgt. Flynn (Board Review 5).

Potential Issues

- § 87(2)(b) was unable to recall the precise incident date, and could only remember that it happened when he was arrested in May of 2015 in the area of Broadway and Canal Street. § 87(2)(b) also recalled that he was released with a desk appearance ticket, § 87(2)(b)
[REDACTED] § 87(2)(b)
[REDACTED]
[REDACTED] [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
- § 87(2)(b)
[REDACTED] § 87(2)(b) could not provide the names or contact information of any possible witnesses, as § 87(2)(b) denied that there were witnesses to the incident.

Findings and Recommendations

Explanation of Subject Officer Identification

On November 19, 2015, § 87(2)(b) appeared at the CCRB as a walk-in with approximately 18 other individuals who § 87(2)(b) and wanted to file complaints regarding their interactions with Sgt. Flynn. Though § 87(2)(b) was unable to identify Sgt. Flynn by name, § 87(2)(b) described Sgt. Flynn as a white male with tattoos on his arms, and taller than 5'10". § 87(2)(b) confirmed that the subject officer was the same officer whom his colleagues were at the CCRB to complain about. § 87(2)(b)'s physical description of Sgt. Flynn is consistent with the physical description provided in other complaints filed by § 87(2)(b)'s colleagues, some of whom were able to identify Sgt. Flynn by name (see CCRB case #§ 87(2)(b)). Additionally, Sgt. Flynn acknowledged his interactions with § 87(2)(b) in his CCRB testimony.

Allegation A -Discourtesy: Sgt. Brian Flynn spoke discourteously to § 87(2)(b)

Allegation B – Offensive Language: Sgt. Brian Flynn made a remark to § 87(2)(b) based upon race.

Allegation C – Offensive Language: Sgt. Brian Flynn made a remark to § 87(2)(b) based upon ethnicity.

§ 87(2)(g)

On May 6, 2015, at approximately 4:45 p.m. § 87(2)(b) was speaking with his friends in the area of Broadway and Canal Street. § 87(2)(b) who is known to the CCRB as a street vendor, denied that he was working as a vendor on the date of his arrest. According to § 87(2)(b) he was arrested for taking a black plastic bag from a Chinese person, at which point, Sgt. Flynn approached and told § 87(2)(b) to turn around. § 87(2)(b) complied and was handcuffed by Sgt. Flynn. § 87(2)(b) asked why he was being arrested and Sgt. Flynn allegedly told § 87(2)(b) to “shut up” multiple times and allegedly called § 87(2)(b) a “monkey.” Sgt. Flynn then allegedly told § 87(2)(b) he would “send all of you guys back” in reference to § 87(2)(b) and his vendor colleagues. § 87(2)(b) was transported to the 1st precinct stationhouse, where he was released without additional incident (see § 87(2)(b)'s CCRB statement).

Sgt. Flynn testified that PO Giocardo Bernabe informed him that he was going to make an arrest for § 87(2)(b)'s unlicensed vending. Sgt. Flynn was not with PO Bernabe at the time of his initial observations of § 87(2)(b) and only accompanied PO Bernabe to make the arrest. PO Bernabe approached § 87(2)(b) and PO Bernabe informed § 87(2)(b) that he was under arrest. § 87(2)(b) did not ask what he was under arrest for at any point. § 87(2)(b) placed his hands behind his back, and was handcuffed by PO Bernabe. PO Bernabe walked § 87(2)(b) across the street where they radioed for a marked car to transport § 87(2)(b) to the 1st precinct stationhouse. There was no conversation between the officers and § 87(2)(b) while waiting for the transport vehicle. Sgt. Flynn did not go with § 87(2)(b) when he was transported to the 1st precinct stationhouse. Sgt. Flynn described the encounter as a routine arrest, and denied that he conversed with § 87(2)(b) at any point. Sgt. Flynn denied that there was any conversation regarding § 87(2)(b)'s race or country of origin. Sgt. Flynn denied that he told § 87(2)(b) to “shut up.” Sgt. Flynn denied that he called § 87(2)(b) a “monkey.” Sgt. Flynn denied that he told § 87(2)(b) he’d “send all of you guys back.” Sgt. Flynn denied that he spoke discourteously to § 87(2)(b) at any point (see Sgt. Flynn’s CCRB testimony).

PO Bernabe testified that while he worked a foot post with Sgt. Flynn, he observed § 87(2)(b) showing multiple handbags to passerbys, and ultimately exchange money for one of the

handbags. PO Bernabe and Sgt. Flynn approached § 87(2)(b) and PO Bernabe informed § 87(2)(b) that he saw him exchanging money, and asked § 87(2)(b) if he had a license. § 87(2)(b) stated that he did not have a license. PO Bernabe did not recall Sgt. Flynn having any conversation with § 87(2)(b) at this time, as PO Bernabe was mostly doing all of the speaking with § 87(2)(b). PO Bernabe told § 87(2)(b) to turn around and subsequently handcuffed him. PO Bernabe did not recall there being any conversation between Sgt. Flynn and § 87(2)(b) as he was handcuffed. § 87(2)(b) did not ask what he was being arrested for. PO Bernabe was unsure who transported § 87(2)(b) to the 1st precinct stationhouse, and could not recall if it was himself and Sgt. Flynn, or if additional officers arrived. PO Bernabe denied that there was any conversation regarding § 87(2)(b)'s race or country of origin. PO Bernabe denied that Sgt. Flynn told § 87(2)(b) to "shut up." PO Bernabe denied that Sgt. Flynn referred to § 87(2)(b) as a "monkey." PO Bernabe denied that Sgt. Flynn told § 87(2)(b) he'd "send all of you guys back" and denied that he overheard Sgt. Flynn speak discourteously to § 87(2)(b).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g). It is therefore recommended that **Allegation A**, **Allegation B**, and **Allegation C** be closed as **unsubstantiated**.

Squad:

Investigator:	_____	_____	_____
	Signature	Print	Date
Pod Leader:	_____	_____	_____
	Title/Signature	Print	Date
Attorney:	_____	_____	_____
	Title/Signature	Print	Date